

CHAPTER 18.

An Act to prohibit the alteration, except with the consent of the Board of Trade, of Articles of Association or Regulations which restrict Foreign Interests in Companies, and for other purposes connected therewith.

[24th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where any provision in the articles of association of a registered company is designed to restrict or limit, or has the effect of restricting or limiting, the proportion or amount of the capital of the company or of the voting power in the company, or of the control upon the Board of the company which may be held or exercised by or on behalf of aliens, or is otherwise designed to restrict or limit, or has the effect of restricting or limiting, the interests or authority of aliens in the company or the control of the company by aliens, an alteration of that provision shall not be of any effect, notwithstanding anything in any other Act, until it has received the written consent of the Board of Trade.

Prohibition of alteration of articles restricting foreign interests in companies except with consent of Board of Trade.

(2) The decision of the Board of Trade as to whether an alteration of a provision requires the consent of the Board under this Act or not shall be final and conclusive.

(3) This Act shall apply to any regulations or provisions in the nature of regulations affecting an incorporated company, not being a registered company, which can be altered by the company, in the same manner as it applies to the articles of association of a registered company.

(4) In this Act the expression "registered company" means a company as defined by section two hundred and eighty-five of the Companies (Consolidation) Act, 1908, and the expression "alien" includes any body corporate not incorporated in some part of His Majesty's dominions and any class of aliens.

6 Edw. 7. c. 69.

2. The following provisions shall apply to every company in whose articles of association is contained any provision such as mentioned in section one (1) of this Act :—

Provisions applicable to certain companies.

- (1) A resolution for the voluntary winding-up of the company shall be of no effect unless the Board of Trade in its discretion authorises or ratifies it by a written consent.
- (2) The Court which has jurisdiction to wind up the company may in its discretion refuse to make a winding-up order.
- (3) In the exercise of its discretion the Board of Trade or the Court, as the case may be, shall be guided by the consideration whether the winding-up is bonâ

vide with a view to the discontinuance of the undertaking, or is with a view to continuing the undertaking free from any restrictions or limitations such as are mentioned in section one (1) of this Act which are contained in the company's articles of association or any of such restrictions or limitations.

- (4) The Board of Trade in giving consent or the Court in making a winding-up order, as the case may be, may impose such terms or conditions for giving effect to this Act as it thinks fit.

Short title.

3. This Act may be cited as the Companies (Foreign Interests) Act, 1917.

CHAPTER 19.

An Act to reduce, in connection with the present War, the Number of Jurors at Coroners' Inquests.

[24th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Number of
coroner's jury.

50 & 51 Vict.
c. 71.

1. "Seven" and "eleven" shall be substituted for "twelve" and "twenty-three" respectively in section three of the Coroners Act, 1887, as the minimum and maximum number of jurors who are to be summoned by a coroner, and "seven" shall accordingly also be substituted for "twelve" in subsection (3) of that section and subsection (5) of section four of the Coroners Act, 1887.

Short title and
duration.

2.—(1) This Act may be cited as the Coroners (Emergency Provisions) Act, 1917.

(2) This Act shall have effect only during the continuance of the present war and for a period of six months after the termination thereof.

CHAPTER 20.

An Act to make provision for the Billeting of Persons engaged on Work of National Importance for the purposes of the present War. [24th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :